

AWARD MADE BY ARBITRATOR APPOINTED BY COURT UNDER
SECTION 11 OF THE ARBITRATION AND CONCILIATION ACT 1996

In the matter of the Arbitration and
Conciliation Act 1996

And

In the matter of Application No
of 2005

This is the Award of the Arbitrator
made this.....day of....2005.

WHEREAS in pursuance of an Order dated.....made by the Hon'ble High Court at Calcutta in Application No..... of 2005 I was appointed Arbitrator and I entered into the reference, the parties filed Statement of claim, counter-statement and documents and the parties have adduced both documentary and oral evidence, issues were framed and arguments were heard from both sides and ultimately there were only two issues raised namely,

(a) whether the Executive Engineer of the State Government received 500 M.T. of Bitumen and

(b) whether the Contractor Claimant is entitled to carrying charges amounting to Rs. 2 lakhs.

I have considered the averments in the statement of claim and in the counter-statement, the documentary evidence produced and oral evidence given by the Executive Engineer as also the Contractor. I deal with the two issues as follows:

Issue No. 1. From the documents and from the evidence of the Executive Engineer it is clear that the Contractor transported 500 M.T. of Bitumen from Haldia and offered delivery to the Executive Engineer, P.W.D. but he directed to deliver the goods to Assistant Engineer, P.W.D. at some other place specified by him. The Contractor delivered the goods to the specified Asstt. Engineer. The Asstt. Engineer did not issue any receipt for the goods delivered on the ground that there was no office order for purchase of the Bitumen by his section and as such he could not give the receipt. The Executive Engineer has admitted that he also could not issue any receipt for the Bitumen inasmuch as payment for the goods would be made by the Section of the Asstt. Engineer. He has stated that unless the higher authorities gave definite direction as to who would issue the receipt and who would be responsible for payment the Executive Engineer could not do anything in the matter. It was admitted that the goods were received by the P.W.D. of the State Government and that the Asst. Engineer was accountable to the Executive Engineer. It is further admitted by the Executive Engineer that the Bitumen in question was used by the P.W.D. of the State Government. In the premises I hold that the contractor delivered 500 M.T. of Bitumen to the Chief Engineer/Executive Engineer/P.W.D. and the P.W.D. received and appropriated the goods.

Issue No. 2. As the P.W.D. has received the goods it is apparent that the Contractor has discharged his obligations of carriage of goods from Haldia to the destination and is entitled to carriage charges. The Contractor is entitled to payment of Rs. 2 lakhs being the agreed carriage charges with interest at 18% per annum on Rs. 2 lakhs from till payment.

I award Rs. 2 lakhs to be paid by the Executive Engineer, P.W.D. State Government to the Contractor with interest thereon at 18% per annum fromtill payment.

I award Rs. 20,000 as costs to be paid to the Contractor by the Executive Engineer, P.W.D. State Government.

Dated this.....day of.....

Arbitrator
(Name)